



File No: EXP202308435

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR

RECOGNITION

OF RESPONSIBILITY AND

VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 6, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against DENTAL COMERCIO 4 S.L. (hereinafter, DC4), through the agreement that is transcribed:

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File No: EXP202308435

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 18, 2023. The complaint is directed against GERDENTAL 22 S.L. with NIF B87560603. The reasons for the complaint are as follows:

The complainant received a call from Gerdental Clinic offering various treatments and was informed that they are registered in the Robinson List.

Along with the notification, a certificate of active registration in the Robinson List Service, a copy of their phone bill reflecting the call, and a screenshot of the received call were provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to GERDENTAL 22 S.L. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not acknowledged by the responsible party within the period for making it available, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 03/07/2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail on 04/07/2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means. The result of this notification was "absent in delivery."

Having been returned, the document was sent again on 04/08/2023 by certified postal mail and was again returned for "absent in delivery."

No response has been received to this forwarding document.

THIRD: On September 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, having knowledge of the following aspects:

Regarding the claimed number ***PHONE.1:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line

was:

ONMOVIL COMUNICACIONES MÓVILES, S.L.U. -> TRUEITSYSTEMS, S.L. -> EVERYWHERE TECHNOLOGY S.L.

A request was sent to EVERYWHERE TECHNOLOGY S.L., and from their response, the following

CONCLUSIONS:

EVERYWHERE TECHNOLOGY, S.L. acknowledges having made the call due to the campaign agreed upon between them and DENTAL COMERCIO 4 S.L., claiming to have reviewed a database that must be filled out by telecommunications operators indicating whether the subscriber of the telephone number accepts or not the use of their personal data for commercial purposes or

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advertising, without taking the precaution of independently checking the Robinson list to corroborate this data.

It also provides a copy of the contract entered into with DENTAL COMERCIO 4 S.L. for the scheduling of appointments that motivates the call.

EVERYWHERE TECHNOLOGY, S.L. informs that the data of the claimant was obtained from a database acquired from a third party.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 84.3) of Law 9/2014, of May 9, on Telecommunications (LGT), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this sanctioning procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Obligation breached

The known facts could constitute an infringement, attributable to DENTAL COMERCIO 4 S.L., for violation of Article 48 of the LGT regarding the "Right to the protection of personal data and privacy in relation to unsolicited communications, with traffic and location data and with subscriber directories," which provides as follows:

1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

a) Not to receive automated calls without human intervention or fax messages for commercial communication purposes without having given their prior and informed consent for this.

b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right.

2. Regarding the protection of personal data and privacy in relation to traffic data and location data other than traffic data, end users of electronic communications services shall have the following rights:

a) To have their traffic data anonymized or canceled when they are no longer necessary for the transmission of a communication. Traffic data necessary for billing subscribers and payments for interconnections may only be processed until the deadline for contesting the service bill, for the refund of the charge made by the operator, for the payment of the bill, or for the operator to demand its payment has expired.

b) To have their traffic data used for commercial promotion of electronic communications services or for the provision of value-added services, to the extent and for the time necessary for such services or

commercial promotion only when they have given their informed consent for this. End users shall have the right to withdraw their consent for the processing of traffic data at any time and with immediate effect.

c) To ensure that the processing of their location data other than traffic data only occurs when they have been anonymized or with their informed consent and only to the extent and for the time necessary for the provision, where applicable, of value-added services, with unequivocal knowledge of the data that will be subjected to processing, the purpose and duration of the same, and the value-added service that will be provided. End users shall have the right to...

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withdraw their consent at any time and with immediate effect for the processing of location data other than traffic data.

End users shall not exercise this right when it concerns emergency calls made through the number 112 or communications made to entities providing emergency call services as determined by the Ministry of Industry, Energy and Tourism.

3. Regarding the protection of personal data and privacy in relation to subscriber directories, end users of electronic communication services shall have the following rights:

a) To be included in subscriber directories.

b) To be informed free of charge about the inclusion of their data in the directories, as well as the purpose thereof, prior to such inclusion.

c) Not to be included in the directories or to request the omission of some of their data, to the extent that such data is relevant to the purpose of the directory stipulated by their provider.

4. The provisions in letters a) and c) of section 2 of this article are understood without prejudice to the obligations established in Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks.

In the complaint submitted to this Agency, it is stated that on 07/06/2023, the complainant received a commercial call on their mobile phone from the number ***PHONE.1 and that their interlocutor identified themselves as "Clínica Ger Dental" located at Avda. de Menéndez Pelayo 22 in Madrid. After offering various dental treatments, the respondent was informed that they could not call the complainant because they were registered on the Robinson List since 2021 and that the facts would be reported. When the complainant indicated that they were registered on the "Robinson List," the operator hung up the call.

The holder of the line that contacted the complainant is EVERYWHERE TECHNOLOGY S.L., which acknowledges having made the call in a commercial campaign arranged with DENTAL COMERCIO 4 S.L., although it claims to have reviewed a database where it is noted whether the subscriber of the telephone number accepts or not the use of their personal data for commercial or advertising purposes, but without reviewing the Robinson List to confirm this data.

Regarding the rights of users concerning the telephone calls with advertising messages they receive, article 48.1.b) of the LGT, previously transcribed, states that users have the right to object to receiving unwanted calls for commercial purposes and to be informed of that right.

However, since the aforementioned article does not explicitly configure the right of opposition, we must refer to the data protection regulations where it is indeed regulated. That is, articles 21 of the GDPR and 23 of the LOPDGDD respectively. Thus, we have that article 21 of the GDPR establishes, regarding the right to object to the processing of personal data, that:

"1. The data subject shall have the right to object at any time, on grounds relating to their particular situation, to personal data concerning them being processed based on the provisions of Article 6, paragraph 1, letters e) or f), including profiling based on those provisions. The controller shall cease to process the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. Where the processing of personal data is for direct marketing purposes, the data subject shall have the right to object at any time to the processing of personal data concerning them, including profiling to the extent that it is related to such marketing.
3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.
4. At the latest at the time of the first communication with the data subject, the right referred to in paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.
5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise their right to object by automated means using technical specifications. (...)"

For its part, article 23.4 of the LOPDGDD establishes that: "Those intending to carry out direct marketing communications must first consult the advertising exclusion systems that may affect their actions, excluding from processing the data of those who have expressed their opposition or refusal to it. For these purposes, consulting the exclusion systems included in the list published by the competent supervisory authority shall be sufficient to consider the previous obligation fulfilled."

III

Classification and qualification of the infringement

From all of the above, it follows that making commercial calls to the complainant despite their opposition could constitute a violation of what is stipulated in article 48.1.b) of the LGT.

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This Infraction is classified as "minor," in Article 78.1) of said regulation, which considers as such: "The failure to comply with public service obligations, public obligations, and the violation of the rights of consumers and end users as established in Title III of the Law and its implementing regulations."

IV

Proposal for Sanction

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed, in accordance with Article 79.d) of the aforementioned LGT, which establishes:

d) For the commission of minor infractions, a fine of up to 50,000 euros shall be imposed on the infringer.

According to these criteria, it is deemed appropriate to impose an initial sanction of €5,000 (FIVE THOUSAND euros) on the entity being claimed against for the infraction of Article 48.1.b) of the LGT, in relation to Article 23.4 of the LOPDGDD, classified as minor in Article 78.1 of the LGT, regarding commercial telephone calls to the complainant despite their opposition.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against DENTAL COMERCIO 4 S.L., with NIF B82361668, for the alleged infraction of Article 48.1.b) of the LGT, in relation to Article 23.4 of the LOPDGDD, regarding commercial telephone calls to the complainant despite their opposition.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Sub-Directorate for Data Inspection in the proceedings prior to the initiation of this sanctioning

procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be, for the alleged infraction of Article 48.1.b) of the LGT, in relation to Article 23.4 of the LOPDGDD, classified in Article 78.1 (minor) of said regulation, an administrative fine of €5,000 (FIVE THOUSAND euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to DENTAL COMERCIO 4 S.L., with NIF B82361668, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be set at €4,000 (FOUR THOUSAND euros), resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €4,000 (FOUR THOUSAND euros), and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €3,000 (THREE THOUSAND euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (€4,000 or €3,000), they must make it effective by depositing it into account no.

IBAN: ES00-0000-0000-000000-0000-0000

(BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are adhering.

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Likewise, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications, and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative

appeal can be made against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On June 12, 2024, DC4 proceeded to pay the fine in the amount of 3,000.00 euros, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the initiation agreement notified informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 3,000.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, DC4 has proceeded to acknowledge responsibility and to voluntarily pay the sanction, availing itself of the two

provisions for reductions. In accordance with paragraph 3 of Article 85 of the LPACAP, the effectiveness of the aforementioned reductions will be conditional upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the commission of the infractions and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total of 5,000.00 euros.

After DENTAL COMERCIO 4 S.L. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, which results in a final amount of 3,000.00 euros.

The effectiveness of the aforementioned reductions is, in any case, conditional upon the withdrawal or renunciation of any action or appeal in the administrative pathway.

SECOND: TO DECLARE the termination of procedure EXP202308435, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to DENTAL COMERCIO 4 S.L.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility upon the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution will be final in the administrative pathway and fully enforceable from the moment of its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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